

25PSCV03927 25PSCV03927

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV03927 Hearing Date: July 22, 2026 Dept: H

Gong v. Ramirez,

et al., Case

No. 25PSCV03927

ORDER ON

DISCOVERY MOTIONS

1. Plaintiff Lan Gong's unopposed Motion

to Deem Facts in Request for Admissions, Set No. One, Admitted is GRANTED.

Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the

Court orders that the genuineness of

all documents and the truth of the matters specified in Plaintiff's Request for

Admission, Set No. One, propounded by Plaintiff to Ramirez be deemed admitted. Sanctions

are awarded in the reduced amount of \$260.00 and are payable within 20 days

from the date of the notice of ruling.

2. Plaintiff Lan Gong's unopposed Motion

to Compel Verified Responses from Defendant Crystal Ramirez to Form

Interrogatories, Set No. One is GRANTED. Ramirez is ordered to provide verified

responses, without objections, to Plaintiff's Form Interrogatories, Set No.

One, within 20 days from the date of the notice of ruling. Sanctions are

awarded in the reduced amount of \$260.00 and are payable within 20 days from

the date of the notice of ruling.

3. Plaintiff Lan Gong's unopposed Motion

to Compel Verified Responses from Defendant Crystal Ramirez to Special

Interrogatories, Set No. One is GRANTED. Ramirez is ordered to provide verified

responses, without objections, to Plaintiff's Special Interrogatories, Set No.

One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$260.00 and are payable within 20 days from the date of the notice of ruling.

4. Plaintiff Lan Gong's unopposed Motion

to Compel Verified Responses from Defendant Crystal Ramirez to Request for Production of Documents, Set No. One is GRANTED. Ramirez is ordered to provide verified responses, without objections, to Plaintiff's Request for Production of Documents, Set No. One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$260.00 and are payable within 20 days from the date of the notice of ruling.

Background

Plaintiff

Lan Gong ("Plaintiff") alleges that on December 15, 2024, she sustained injuries in a dog attack.

On

October 30, 2025, Plaintiff filed a complaint, asserting causes of action against Crystal Ramirez ("Ramirez"), Youguo Wu ("Wu"), Cuiyun Li ("Li"), and Does 1-20 for: (1) Strict Liability (Civil Code § 3342), (2) Strict Liability (Animal with Known Dangerous Propensity), and (3) Negligence.

On

January 29, 2026, Wu and Li filed a cross-complaint, asserting causes of action against Ramirez and Roes 1-20 for: (1) Total Indemnity, (2) Declaratory Relief—Implied Partial Indemnity, and (3) Declaratory Relief—Equitable Apportionment.

A Case

Management Conference is set for July 22, 2026.

1.

Motion to Deem Requests for Admissions Admitted, Set No. One

Legal

Standard

A

response to requests for admission is due within 30 days after service. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. . . ." (Code Civ. Proc., § 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. . . ." (Code Civ. Proc., § 2033.280, subd. (c).)

"It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

Discussion

Plaintiff

moves the Court for an order, pursuant to Code of Civil Procedure section 2033.280, that the genuineness of all documents and that the truth of all matters specified in Plaintiff's Requests for Admissions, Set No. One, served on Ramirez on February 2, 2026, be deemed admitted. Plaintiff also seeks sanctions against Ramirez in the amount of \$460.00.

Plaintiff's

counsel Jesus Hernandez ("Hernandez") represents, and/or the accompanying exhibits reflect, as follows:

On

February 2, 2026, the subject discovery was served. (Hernandez Decl., ¶ 4, Exh. 1.) Responses were due on March 6, 2026, but none were received. (Id., ¶ 4.) On April 3, 2026, Hernandez's firm sent Ramirez, requesting responses within 5 days. (Id., ¶ 5, Exh. 2.) On April 27, 2026, Hernandez's firm sent a follow-up letter to Ramirez, requesting responses before the close of business on May 4, 2026. (Id., ¶ 6, Exh. 3.) On May 28, 2026, Hernandez called Ramirez and left a voicemail, requesting that she return his call. (Id., ¶ 7.) Ramirez has not returned Hernandez's call, nor has she served responses or communicated with Hernandez's office regarding this matter. (Id., ¶¶ 7 and 8.)

The unopposed motion is granted. Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), the Court orders that the genuineness of all documents and the truth of the matters specified in Plaintiff's Requests for Admission, Set No. One, propounded by Plaintiff to Ramirez be deemed admitted.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$460.00 [calculated as follows: 1 hour preparing motion and 1 hour preparing reply and attending hearing, discounted from \$400.00/hour to \$200.00/hour, plus \$60.00 filing fee].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$260.00 (i.e., 1 hour attorney time at \$200.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

2.

Motion to Compel Form Interrogatories, Set No. One

Legal

Standard

A response to interrogatories is due within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) "If a party to whom interrogatories are directed fails to serve a timely response, . . . [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).)

"The court shall impose a monetary sanction .

. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust . . ." (Code Civ. Proc., § 2030.290, subd. (c).)

Discussion

Plaintiff

moves the Court for an order compelling Ramirez to serve verified responses, without objection, to Plaintiff's Form Interrogatories, Set No. One. Plaintiff also seeks sanctions against Ramirez in the amount of \$460.00.

See

synopsis of Motion #1.

The unopposed motion is granted. Ramirez is ordered to provide verified responses, without objections, to Plaintiff's Form Interrogatories, Set No. One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$460.00 [see identical calculation provided in Motion #1].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$260.00. Sanctions are payable within 20 days from the date of the notice of ruling.

3.

Motion to Compel Special Interrogatories

Legal

Standard

See

Motion #2.

Discussion

Plaintiff

moves the Court for an order compelling Ramirez to serve verified responses,

without objection, to Plaintiff's Special Interrogatories, Set No. One. Plaintiff also seeks sanctions against Ramirez in the amount of \$460.00.

See
synopsis of Motion #1.

The unopposed motion is granted. Ramirez is ordered to provide verified responses, without objections, to Plaintiff's Special Interrogatories, Set No. One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant
seeks sanctions against Plaintiff in the
amount of \$460.00 [see identical calculation provided in Motion #1].

Utilizing
a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$260.00. Sanctions are payable within 20 days from the date of the notice of ruling.

4.
Motion to Compel Requests for Production

Legal
Standard

A
response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).)

"[T]he
court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §

2031.300, subd. (c).)

Discussion

Plaintiff

moves the Court for an order compelling Ramirez to serve verified responses, without objection, to Defendant's Request for Production of Documents, Set No. One. Plaintiff also seeks sanctions against Ramirez in the amount of \$460.00.

See

synopsis of Motion #1.

The unopposed motion is granted. Ramirez is ordered to provide verified responses, without objections, to Plaintiff's Request for Production of Documents, Set No. One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$460.00 [see identical calculation provided in Motion #1].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$260.00. Sanctions are payable within 20 days from the date of the notice of ruling.